NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH (COURT-I), CHANDIGARH

CA(CAA) No. 5/Chd/Hry/2026

(A Petition under sections 230 to 232 and other applicable provisions of the Companies Act, 2013, read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016)

IN THE MATTER OF THE COMPOSITE SCHEME OF ARRANGEMENT OF:

1. Shahi Exports Private Limited,
(CIN: U65110HR2005PTC142404)
Registered office: IP-1, Sector-28, Faridabad,
Sector 29, Haryana- 121008.
Email: secretarial@shahi.co.in
Ph: +91-9971900124
PAN: AAJCS1175L

...Demerged Company /Applicant Company 1

2. Shahi Knits Private Limited ,
(CIN: U17299HR2022PTC141698)
Registered office: IP-1, Sector-28, Faridabad,
Sector -29 Haryana, India, 121008
Email: secretarial@shahi.co.in
Ph: +91-9971900124
PAN: AAWCA7126L

...Transferor Company 1/ Applicant Company 2

3. HSA Apparel Private Limited
(CIN: U17120HR2008PTC141699)
Registered office: IP-1, Sector-28, Faridabad,
Sector 29, Haryana 121008
Email: secretarial@shahi.co.in
Ph: +91-9971900124
PAN: AACCH0707N

... Transferor Company 2/Applicant Company 3

4. Shahi Garments Private Limited ,
(CIN: U14101HR2025PTC139262)

Registered office:Industrial Plot-1, Sector-28,
Mathura Road Faridabad-121003, Haryana
Email: secretarial@shahi.co.in
Ph: +91-9971900124
PAN: ABSCS0870Q

...Resulting Company/Applicant Company 4

Order delivered on: 29.04.2026

CORAM: MR. KHETRABASI BISWAL, MEMBER (JUDICIAL)
MR. SHISHIR AGARWAL, MEMBER (TECHNICAL)

Present: For the Petitioner : Mr. Dhritiman Bhattacharyya, Advocate

ORDER

1. This is a joint First Motion Application (hereinafter referred to as "Application") filed by the Companies namely; ***Shahi Exports Private Limited*** (hereinafter referred to as "Demerged Company/Applicant Company No. 1"), ***Shahi Knits Private Limited*** (hereinafter referred to as "Transferor Company 1/Applicant Company No. 2"), ***HSA Apparel Private Limited*** (hereinafter referred to as "Transferor Company 2/Applicant Company No. 3") and ***Shahi Garments Private Limited*** (hereinafter referred to as "Resulting Company/Transferee Company/Applicant Company No. 4") under Sections 230-232 and other applicable provisions of the Companies Act, 2013 (hereinafter referred to as "Act"), and the Companies (Compromise, Arrangements, and Amalgamations) Rules, 2016 (hereinafter referred to as "Rules"), seeking for considering and approving, with or without modification, a Composite Scheme of Arrangement (hereinafter referred to as "Scheme"). A copy of the Scheme is attached as

Annexure-A to the Application. The Applicant Companies have, inter alia, sought the following reliefs in the Application:

a) Dispensation from the requirement of convening the meeting of Equity Shareholders of the Applicant Companies No. 1, 2, 3 and 4, in view of the written consent of all equity shareholders filed by way of affidavit.

b) Convening and holding the meetings of Secured Creditors of Applicant Company Nos. 1, 2 and 3.

c) Convening and holding the meetings of Unsecured Creditors of Applicant Company Nos. 1, 2 and 3.

d) Dispensation from the requirement of convening the meeting of Secured Creditors and Unsecured Creditors of Applicant Company No. 4, there being no such creditors.

2. The averments as made in the Application and presented by the Ld. Counsel are summarised below:

(i) ***Shahi Exports Private Limited*** (Applicant Company No. 1 / Demerged Company) is a private company incorporated on 15th July 2005 under the provisions of the Companies Act, 1956 (Corporate Identification Number: U65110HR2005PTC142404) with its registered office situated at IP-1, Sector-28, Faridabad, Sector 29, Haryana – 121008.

(ii) The Applicant Company No. 1 is engaged in designing, manufacturing, and selling a wide range of readymade garments and fabric items, catering to the needs of several leading international fashion brands and retailers.

(iii) The authorised, issued, subscribed and paid-up share capital of the Applicant Company No. 1 as on 31.12.2025, as per the provisional financial statements, is as under:

Authorised Capital	***Amount (in INR)***
15,500,000 Equity Shares of INR 10/- each	*15,50,00,000/-*
2,65,000 Non-Cumulative Redeemable Preference Shares of INR 10/- each	*26,50,000/-*
Total	***15,76,50,000/-***
Issued, Subscribed and Paid-up Capital	***Amount (in INR)***
1,38,12,186 Equity Shares of INR 10/- each, fully paid-up	*13,81,21,860/-*
Total	***13,81,21,860/-***

There has been no change in the authorised, issued, subscribed, or paid-up share capital of the Applicant Company No. 1 after 31.12.2025 till the date of filing of this application.

(iv) ***Shahi Knits Private Limited*** (Applicant Company No. 2 / Transferor Company 1) is a private company incorporated on 24th March 2022 under the Companies Act, 2013 (Corporate Identification Number: U17299HR2022PTC141698) with its registered office situated at IP-1, Sector-28, Faridabad, Sector 29, Haryana – 121008. The Applicant Company No. 2 is engaged in business of fabric processing, designing, manufacturing and selling a wide range of fabric items. The share capital of the Applicant Company No. 2 as on 31.12.2025 is as follows:

Authorised Capital	***Amount (in INR)***
10,000 Equity Shares of INR 10/- each	*1,00,000/-*
Total	***1,00,000/-***
Issued, Subscribed and Paid-up Capital	***Amount (in INR)***
10,000 Equity Shares of INR 10/- each, fully paid-up	*1,00,000/-*
Total	***1,00,000/-***

There has been no change in the authorised, issued, subscribed, or paid-up share capital of the Applicant Company No. 2 after 31.12.2025 till the date of filing of this application.

(v) ***HSA Apparel Private Limited*** (Applicant Company No. 3 / Transferor Company 2) is a private company incorporated on 21st July 2008 under the provisions of the Companies Act, 1956 (Corporate Identification Number: U17120HR2008PTC141699) with its registered office situated at IP-1, Sector-28, Faridabad, Sector 29, Haryana – 121008. The Applicant Company No. 3 is engaged in designing, manufacturing and selling a wide range of readymade garments and fabric items. The share capital of the Applicant Company No. 3 as on 31.12.2025 is as follows:

Authorised Capital	***Amount (in INR)***
1,00,000 Equity Shares of INR 10/- each	*10,00,000/-*
Total	***10,00,000/-***
Issued, Subscribed and Paid-up Capital	***Amount (in INR)***
10,000 Equity Shares of INR 10/- each, fully paid-up	*1,00,000/-*
Total	***1,00,000/-***

There has been no change in the authorised, issued, subscribed, or paid-up share capital of the Applicant Company No. 1 after 31.12.2025 till the date of filing of this application.

(vi) ***Shahi Garments Private Limited*** (Applicant Company No. 4 / Resulting/Transferee Company) is a private company incorporated on 15th December 2025 under the Companies Act, 2013 (Corporate Identification Number: U14101HR2025PTC139262) with its registered office situated at Industrial Plot-1, Sector-28, Mathura Road, Faridabad, Haryana – 121003. The Applicant Company No. 4 is engaged in the business of manufacturing and exporting readymade garments. The share capital of the Applicant Company No. 4 as on 31.01.2026 is as follows:

Authorised Capital	***Amount (in INR)***
1,00,000 Equity Shares of INR 10/- each	*10,00,000/-*
Total	***10,00,000/-***
Issued, Subscribed and Paid-up Capital	***Amount (in INR)***
10,000 Equity Shares of INR 10/- each, fully paid-up	*1,00,000/-*
Total	***1,00,000/-***

There has been no change in the authorised, issued, subscribed, or paid-up share capital of the Applicant Company No. 4 after 15.12.2025 till the date of filing of this application.

(vii) Copies of the Memorandum and Articles of Association, along with the master data of the Applicant Companies, are annexed with the Application as Annexure C-2, D-2, E-2, F-2 and Annexure C-1, D-1, E-1, F-1, respectively.

(viii) Copies of the audited annual accounts as on 31.03.2025 for the Applicant Companies No. 1, 2 and 3 have been annexed as Annexure C-3, D-3 and E-3, respectively. Provisional financial statements as on 31.12.2025 for Applicant Companies No. 1, 2 and 3 have been annexed as Annexure C-4, D-4 and E-4, respectively. The provisional financial statements as on 31.01.2026 for the Applicant Company No. 4 have been annexed as Annexure F-3.

(ix) It is stated that the Board of Directors of the Applicant Companies, in their respective meetings held on 25.02.2026, have considered and approved the proposed Composite Scheme of Arrangement, subject to the sanctioning of the same by this Tribunal. The copies of the Board Resolutions of the Applicant Company Nos. 1, 2, 3 and 4 are attached as Annexure C-6, D-6, E-6 and F-5, respectively, to the Application.

(x) The Scheme is in the interest of shareholders and creditors, and there is no likelihood that any shareholder or creditor of any of the Applicant Companies would be prejudiced as a result of the Scheme. The Scheme will neither impose any additional burden on the shareholders, nor will it adversely affect the interests of any shareholders or creditors of the Applicant Companies. The Scheme provides for the demerger of the Apparel Business Undertaking of the Demerged Company into the Resulting Company, the amalgamation of the Transferor Companies with

the Resulting Company, and is not an arrangement or compromise with creditors of any of the entities involved in the Scheme.

(xi) It is submitted that the Rationale and Salient Features of the Scheme for the Composite Arrangement among the Applicant Companies and their respective shareholders and creditors are, inter alia, as follows:

> *(a) All the companies involved in the Scheme are closely held group companies and for achieving better focus and management efficiency, the management of the companies are of the view that it is essential that the Apparel Business and the Remaining Business are housed in two separate entities. To achieve this, the Apparel Business Undertaking (including the entire holdings in the Transferor Company 1 and Transferor Company 2, which are also engaged in the apparel business) ("Demerged Undertaking") would be demerged into the Resulting Company and the remaining business ("Remaining Undertaking") would be retained in the Demerged Company. This would enable achieving greater visibility on performance of Apparel Business, global competitiveness, rationalization of business processes and reduction of volatility in the earnings streams.*
>
> *(b) The Board of Directors of the companies involved in the Scheme recognize the fact that there is a need to concentrate on the Demerged Undertaking due to vast scope available in the market. The Demerged Undertaking requires specialized skills and knowledge and has distinct capital requirement, cash flow profiles, operational and training requirements.*
>
> *(c) The nature of risk and competition involved in the apparel business is distinct. The investments made in this business are capable of being leveraged so as to derive better gains for shareholders. It has therefore been decided that the Demerged Undertaking should be demerged into Resulting Company.*
>
> *(d) The Scheme further, inter alia, envisages the amalgamation of Transferor Company 1 and Transferor Company 2, which are also engaged in the apparel business with the Transferee Company and transfer and vesting of all the assets, liabilities and business of the said companies in the Transferee Company. This will result in consolidation of the apparel business in the Transferee Company and would, inter alia, have the following benefits.*
>
> > *i. The amalgamation would promote administrative convenience and would facilitate the integration of all activities of management.*

ii. The amalgamation would help in the achievement of optimum utilization of various resources and the elimination of unnecessary duplication of costs, thereby helping in achieving reduction and improving control over costs.

(e) The Appointed date under the Scheme is 01 April 2026. On and from the Appointed Date, the Apparel Business/Demerged Undertaking of the Demerged Company shall demerge into the Resulting Company. All properties and assets, licenses or certificates, registrations obtained under various regulatory laws of the Demerged Undertaking of the Demerged Company shall be transferred to Resulting Company, i.e., Applicant Company 2 so as to become its properties, assets, licenses or certificates and registrations obtained under various regulatory laws. The liabilities of the Demerged Undertaking of the Demerged Company shall be transferred to and vested in and assumed by the Resulting Company.

(f) Upon the scheme coming into effect, all taxes/ cess/ duties, direct and/or indirect payment by or on behalf of the Demerged Undertaking of the Demerged Company, including all or any refund and claims, including refunds and claims pending with the revenue authorities and including the right to carry forward accumulated losses, tax credits, if any, shall for all purposes be treated as the tax/ cess/ duties/ liabilities or refunds, claims, accumulated losses and tax credits of the Resulting Company i.e. Applicant Company 4.

(g) The Scheme also envisages amalgamation of Transferor Company 1 and 2, which are also engaged in apparel business into the Transferee/Resulting Company.

(h) The Scheme does not envisage any loss of employment and specifically provides that on the Scheme becoming effective, all the staff, workmen and employees of the Demerged Undertaking of the Demerged Company and that of the Transferor Company 1 & 2 shall be deemed to have become the employees of the Resulting Company, without any break or interruption in their services, on not less favourable terms and conditions on which they are engaged as on the Effective Date.

(i) Since, the Demerged Company holds multiple licenses and maintain contracts with international entities in connection with its apparel business, in order to ensure continuity particularly with international clientele, and minimal operational disruption of the apparel business, upon the Scheme becoming effective, it is proposed under the Scheme that the name of the Demerged Company shall stand changed to "Shahi Industries Private Limited" or any other name as approved by the Registrar of Companies and the Resulting/Transferee Company shall acquire the name of the Demerged Company and accordingly, the name of the Resulting Company shall stand changed to "Shahi Exports Private Limited".

(xii) Upon the Scheme coming into effect, in consideration of the demerger of the Demerged Undertaking of the Demerged Company into the Resulting Company, the Resulting Company shall issue and allot, without any further application, act, deed, payment or consent, equity shares to the equity shareholders of the Demerged Company in the following ratio as specified in the Scheme:

> ***"1 (One) fully paid Equity Share of INR 10/- (Indian Rupee Ten) each in Shahi Garments Private Limited (SGPL) for every 1 (One) fully paid Equity Share of INR 10/- (Indian Rupee Ten) each held in Shahi Exports Private Limited (SEPL)"***

Since Transferor Company 1 and Transferor Company 2 are/will be wholly owned subsidiaries of the Transferee Company, no shares will be issued by the Transferee Company for their amalgamation. A Valuation Report dated 25.02.2026 has been issued by Mr Kapil Nayyar, Registered Valuer (IBBI/RV/02/2019/12155), and the share exchange ratio has been accepted by the Boards of Directors of the Applicant Companies. A copy of the Valuation Report is annexed as **Annexure-B** to the Application.

(xiii) It is submitted by the authorised representative of the Applicant Companies that as per the information available, the Applicant Companies do not have any material investigations or material proceedings/litigations against them under the Companies Act, 2013 or any other applicable law and that the Applicant Companies do not have

any investigation or proceedings pending against them under Sections 206-229 of the Companies Act, 2013.

(xiv) It is further submitted that the Applicant Companies have filed certificates issued by the Statutory Auditors certifying that the Scheme complies with the Accounting Standards under Section 133 of the Act. These are annexed with the Application as Annexure H-1, H-2, H-3 and H-4 for Applicant Companies 1, 2, 3 and 4, respectively. Since Applicant Companies 2 and 3 are to be dissolved pursuant to the Scheme, there is no question of any accounting treatment in their books.

(xv) The Applicant Companies have furnished the details of Equity Shareholders, Secured Creditors and Unsecured Creditors as on 31.01.2026, which are as follows:

Particulars	***Applicant Co. 1***	***Applicant Co. 2***	***Applicant Co. 3***	***Applicant Co. 4***
No. of Equity Shareholders	*4*	*2*	*2*	*4*
Consent of Equity Shareholders	*All - obtained*	*All - obtained*	*All - obtained*	*All - obtained*
No. of Secured Creditors	*6 (INR 1,881.26 Cr.)*	*1 (INR 22.03 Cr.)*	*2 (INR 0.83 Cr.)*	*Nil*
No. of Unsecured Creditors	*3,034 (INR 842.35 Cr.)*	*108 (INR 6.50 Cr.)*	*32 (INR 20.93 Cr.)*	*Nil*

(xvi) The Scheme of Arrangement has been approved by the respective Boards of Directors of all the Applicant Companies vide their resolutions dated 25.02.2026.

(xvii) It is stated that the Scheme also takes care of the interests of the staff/workmen and employees by virtue of the relevant clause under the Scheme which specifically provides that all staff, workmen and employees of the Demerged Undertaking of the Demerged Company and of the Transferor Companies shall be deemed to have become the employees of the Resulting Company, without any break or interruption in their services, on not less favourable terms and conditions.

(xviii) It is submitted that the Scheme of Arrangement does not provide for any Corporate Debt Restructuring of the Applicant Companies. The said Composite Scheme of Arrangement shall take effect from the Appointed Date, i.e. **01st day of April 2026**, as mentioned in the Scheme.

(xix) The Scheme is not intended to grant any material benefit to the directors of the Applicant Companies except to the extent of their shareholding, if any, in the Applicant Companies.

(xx) The Applicant Companies have availed benefits under the Export Promotion Capital Goods (EPCG) Scheme and have outstanding export obligations. It has accordingly been prayed that notices be specifically issued to the Directorate General of Foreign Trade (DGFT) and the Reserve Bank of India (RBI).

(xxi) That this Application has been filed bona fide and in the interest of justice, and no stakeholder in the Applicant Companies would be prejudiced if the reliefs sought are granted by this Tribunal.

3. We have heard the Ld. Counsel for the Applicant Companies and have perused the material available on record carefully.

4. This application was filed by the Applicant Companies praying for: (a) dispensation from the requirement of convening the meetings of Equity Shareholders of all four Applicant Companies; (b) directions for convening and holding the meetings of Secured Creditors of Applicant Company Nos. 1, 2 and 3; (c) directions for convening and holding the meetings of Unsecured Creditors of Applicant Company Nos. 1, 2 and 3; and (d) dispensation from the requirement of convening meetings of Secured Creditors and Unsecured Creditors of Applicant Company No. 4, there being no such creditors. It is observed that consent affidavits of all equity shareholders of all four Applicant Companies have been duly filed. The Scheme of Arrangement has been approved by the respective Boards of Directors of the Applicant Companies vide resolutions dated 25.02.2026. The Applicant Companies have filed certificates issued by their respective statutory auditors certifying that the Scheme is in compliance with the Accounting Standards under Section 133 of the Act.

5. Having considered the facts and objects of the Scheme as stated in the Application and the materials available on record, we are inclined to dispose of the Company Application bearing **CA(CAA) No. 5/Chd/Hr/2026** with the following directions:

(i) The meeting of the Equity Shareholders of all the Applicant Companies 1, 2, 3 and 4 is hereby dispensed with, keeping in view that consent affidavits of all the equity shareholders of all the Applicant Companies have been received.

(ii) The question of holding a meeting of the Secured Creditors and Unsecured Creditors of Applicant Company No. 4 does not arise, as there are no Secured Creditors and Unsecured Creditors of Applicant Company No. 4.

(iii) The meetings of the Secured Creditors and Unsecured Creditors of Applicant Company Nos. 1, 2 and 3 shall be convened and held in a hybrid mode, i.e., through physical presence at the venue as well as through video conferencing or other audio-visual means, on such date, time and place as may be decided by the Chairperson in consultation with the Applicant Companies, for the purpose of considering and, if thought fit, approving, with or without modification(s), the Scheme. It is further directed that facility for remote e-voting shall be provided to all eligible creditors, and the e-voting lines shall remain open for a period of three (3) days, in such manner and subject to such procedure as may be determined by the Chairperson.

(iv) The share entitlement ratio consequent to the post-Scheme reorganisation shall also be a matter open for consideration, and the Income Tax Department may place its observations thereon, if any, at the time of the Second Motion Petition.

(v) Notices shall be issued to the Registrar of Companies, Haryana at Chandigarh; the Regional Director, Northern Region Directorate II, Chandigarh; the Official Liquidator attached to the Hon'ble Punjab & Haryana High Court; the Income Tax Authorities (through Nodal Officer – Principal Chief Commissioner of Income Tax, NWR). Since it has been stated in the Application that the Applicant Company 1, 2 and 3 have availed benefits under the Export Promotion Capital Goods (EPCG) Scheme and carry outstanding export obligations, on account of which any inter-unit transfer of capital goods arising from the proposed reorganization would necessitate prior approval of the EPCG Committee, DGFT. In light of the same, notices in Form CAA-3 have been directed to be issued to the Director General of Foreign Trade, Department of Commerce & Industry, Udyog Bhavan, New Delhi – 110011, as well as the Reserve Bank of India, Chandigarh.

(vi) At least one month before the date of the aforesaid meetings, an advertisement about the convening of the said meetings, indicating the day, date, place, and time, shall be published in an English daily, i.e., **Business Standard** and in a Hindi daily, i.e., **Dainik Bhaskar** (Delhi NCR / Chandigarh / Haryana Edition). The publication shall indicate the time within which copies of the Scheme shall be made available to the concerned persons free of charge from the Registered Office of the Applicant Companies. The publication shall also include the statement required to be furnished under Section 102 of the Act, read with Sections 230 to 232 of the Act.

(vii) At least one month before the date of the meetings to be held as aforesaid, a notice in Form No. CAA 2 convening the said meetings, indicating the day, the date, the place and time, together with a copy of the Scheme, a copy of the statement required to be furnished pursuant to Sections 230 and 232 read with Section 102 of the Companies Act, 2013 and Rule 6 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, shall be sent by Registered Post or Speed Post or by Courier or E-Mail or Hand Delivery, addressed to Secured Creditors and Unsecured Creditors (having outstanding balance of more than INR 50,000/- each of Applicant Company Nos. 1, 2 and 3, at their respective registered or last known address or e-mail address as per the records of the respective Applicant Companies.

(viii) Shri Dharam Paul Gupta, Advocate, Email ID: dpgupta.advchd@yahoo.co.in, Mobile No.: 9814005991, Address: House No. 208, Sector 21, Panchkula, Haryana, is appointed as the Chairperson for the meetings to be called under this Order. An amount of Rs. 1,50,000/- (Rupees one lakh fifty thousand only) plus applicable taxes will be paid for his services as the Chairperson, over and above the travel cost and out-of-pocket expenses, which shall be paid on an actual basis by the Applicant Companies.

(ix) Mr. Gurvinder Singh Sarin, Practising Company Secretary (PCS), Email ID: cs.gssarin@gmail.com, Mobile No.: 9814685649, Address: SCO 186-187, First Floor, Sector 47-C, Chandigarh, is appointed as the Scrutinizer for the above meetings to be called under this Order. An

amount of Rs. 75,000/- (Rupees seventy five thousand only) plus applicable taxes will be paid for his services as the Scrutinizer, over and above the travel cost and out-of-pocket expenses, which shall be paid on an actual basis by the Applicant Companies.

(x) It is directed that for the meeting of Unsecured Creditors, the creditors of each Applicant Company shall be classified into two classes – Related Parties and Non-Related Parties, as per the provisions of Section 2(76) of the Companies Act, 2013 and their respective meetings shall be held separately. The quorum for the said meetings shall be as follows:

Applicant Company	Creditor Class	Total Creditors	Total Debt Value	25% Value Threshold	Quorum Requirement for each class - Related and unrelated
Shahi Exports Pvt. Ltd. **(Applicant company 1)**	Unsecured	3,034	₹842.35 Cr	₹210.59 Cr	Lower of 20 in number or 25% in value.
Shahi Knits Pvt. Ltd. **(Applicant company 2)**	Unsecured	108	₹6.50 Cr	₹1.63 Cr	Lower of 10 in number or 25% in value
HSA Apparel Pvt. Ltd. **(Applicant company 3)**	Unsecured	32	₹20.93 Cr	₹5.23 Cr	Lower of 5 in number or 25% in value
Shahi Garments Pvt. Ltd. **(Applicant company 4)**	Secured & Unsecured	NIL	NIL	NIL	Not Applicable

(xi) If the quorum for the meetings of both the Secured and Unsecured creditors is not present within 30 minutes of the scheduled time, the meeting shall stand adjourned for one hour. If at the adjourned meeting, the quorum is still not present, the creditors present (minimum two) shall constitute the quorum for that class. The Scheme shall be deemed approved by the Creditors only if a majority in number and representing three-fourths (75%) in value of the creditors of such class, present and voting (including those voting through remote e-voting or e-voting at the meeting), vote in favour of the resolution as per Section 230(6) of the Act.

(xii) It is further directed that voting through a valid proxy has been dispensed by the Ministry of Corporate Affairs vide Circular No. 14/2020 dated 08.04.2020; hence, meetings of creditors shall not be conducted or counted through proxy.

(xiii) The Applicant Companies shall issue the advertisements and send out the notices of the aforesaid meetings. The Chairperson shall have all the powers under the Articles of Association of the Applicant Companies and also under the Rules in relation to the conduct of the meetings, including deciding any procedural questions that may arise at the meetings.

(xiv) The Applicant Companies shall furnish a copy of the Scheme free of charge within one day of any requisition for the Scheme made by any creditor entitled to attend the meeting as aforesaid.

(xv) The Applicant Companies shall, in consultation with the Chairperson, file an Affidavit not less than 7 (seven) days before the date fixed for the meetings and report to this Tribunal that the directions regarding issuance of notices and advertisement of the meetings have been duly complied with as per Rule 12 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

(xvi) It is further ordered that the Chairperson shall report to this Tribunal on the result of the meeting in Form No. CAA-4, along with an affidavit, as per Rule 14 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, within 7 (seven) working days from the date of conclusion of the aforesaid meetings. The Chairperson would be fully assisted by the authorised representative/Company Secretary of the Applicant Companies and the Scrutinizer for conducting the required meetings and preparing and finalising the report.

6. With the aforesaid directions, the First Motion Company Application bearing **CA(CAA) No. 5/Chd/Hry/2026** stands ***allowed and disposed of***, by giving liberty to the Applicant Companies to file a Second Motion Petition under Rule 15 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

7. A copy of this Order shall be supplied to the Learned Counsel for the Applicant Companies, who in turn shall supply a copy of the same to the Chairperson and the Scrutinizer immediately.

Sd/-

(SHISHIR AGARWAL)
Member (Technical)

Sd/-

(KHETRABASI BISWAL)
Member (Judicial)

Yuvraj